

Case Title: State vs Ramesh Kumar

Date of Incident: 14 March 2024

Location: Mount Road, Chennai

Case Summary:

On 14 March 2024 at approximately 10:30 AM, the accused Mr. Ramesh Kumar was stopped by traffic police during a routine vehicle inspection near Mount Road, Chennai.

The traffic officer requested the driver to produce the following documents:

1. Driving Licence
2. Vehicle Registration Certificate
3. Valid Motor Insurance

The accused produced the driving licence and vehicle registration certificate but failed to produce a valid insurance document at the time of inspection.

The officer issued a challan citing violation under Section 146 and Section 196 of the Motor Vehicles Act, 1988 for driving without valid insurance.

The accused later claimed that the vehicle had valid insurance but the document was not available at the time of inspection.

Evidence Submitted:

- Traffic challan issued by the officer
- Vehicle registration certificate
- Insurance policy document dated 01 Jan 2024 to 31 Dec 2024

Legal Question:

Whether the challan issued under Motor Vehicles Act Section 196 is valid when the accused had valid insurance but failed to present it during inspection.

Relevant Laws:

Motor Vehicles Act Section 146 – Requirement for insurance against third-party risk.

Motor Vehicles Act Section 196 – Driving uninsured vehicle.

Motor Vehicles Act Section 130 – Duty to produce licence and certificate of registration.